IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT IN AND FOR HILLSBOROUGH COUNTY, FLORIDA

CASE NO.: [To be assigned]

DIVISION: [Civil, as appropriate]

CHRISTOPHER HANSON, as attorney and next friend for his minor children [7 years old] and [6 years old], Plaintiffs,

v.

THIRTEENTH JUDICIAL CIRCUIT COURT,

CLERK OF THE COURT FOR THE THIRTEENTH JUDICIAL CIRCUIT,

CHIEF JUDGE CHRISTOPHER C. SABELLA,

JUDGE KELLY AYERS,

GINA JUSTICE (Court Administrator),

MIKE MOORE,

VERIFIED PETITION/COMPLAINT FOR WRIT OF MANDAMUS, DECLARATORY RELIEF, AND ATTORNEY'S FEES

I. Introduction and Parties:

1. This is an action under Chapter 119, Florida Statutes, to enforce the constitutional and statutory right of access to public records, brought by Christopher Hanson as attorney and next friend for his minor children [6] and [7].
2. Plaintiff seeks a writ of mandamus compelling the production of public records unlawfully withheld by the Thirteenth Judicial Circuit and its officers. These records relate to judicial bias, corruption, and misconduct in the underlying family law case involving attorneys on both sides and the bench itself, (24-DR-001150), directly impacting the children's welfare.
3. Plaintiff also seeks declaratory relief and attorney’s fees under §119.12, Florida Statutes and any other basis under the law including both statutory, regulatory, and common law grounds.

II. Jurisdiction and Venue

4. This Court has jurisdiction under Article V,§5 of the Florida Constitution and §26.012, Florida Statutes.
5. Venue (prior to the Court's consideration of the corruption and conflicts involved) is proper in Hillsborough County under §47.011, Florida Statutes, because the defendants reside here and the cause of action primarily accrued here.

III. Parties

6. Plaintiff Christopher Hanson is a licensed Florida attorney acting on his own behalf and acting as attorney and next friend for his minor children, who are residents of Florida and have a direct interest in the requested public records under Chapter 119, as they pertain to their welfare in the underlying family law case.
7. Defendant Thirteenth Judicial Circuit Court is a public agency subject to Chapter 119 responsible for maintaining and disclosing judicial records with custodial duties over the records per Florida Rule of Judicial Administration 2.420.
8. Defendant Clerk of the Court for the Thirteenth Judicial Circuit is the entity responsible for custodial duties over judicial records under Florida Rule of Judicial Administration 2.420.
9. Defendant Chief Judge Sabella of the Thirteenth Judicial Circuit, a public officer subject to Chapter 119 who oversees administrative operations, including records management.
10. Defendant Judge Kelly Ayers is a judge in the Thirteenth Judicial Circuit and a public officer subject to Chapter 119, with potential custodial responsibilities over relevant communications and records.
11. This is an action under Chapter 119, Florida Statutes, to enforce the constitutional and statutory right of access to public records, brought by Christopher Hanson as attorney and next friend for his minor children [6] and [7].
12. Plaintiff seeks a writ of mandamus compelling the production of public records unlawfully withheld by the Thirteenth Judicial Circuit and its officers. These records relate to judicial bias, corruption, and misconduct in the underlying family law case involving attorneys on both sides and the bench itself, (24-DR-001150), directly impacting the children's welfare.
13. Plaintiff also seeks declaratory relief and attorney's fees under §119.12, Florida Statutes and any other basis under the law including both statutory, regulatory, and common law grounds.

IV. Relevant Facts:

14. Plaintiff submitted multiple requests for records including several formal letters (Exhibit Composite, filed separate, "EC" pp. 3-10) to the Thirteenth Judicial Circuit between July 24, 2025 and September 4, 2025, seeking access to:

    - Judicial disqualification and recusal records and associated documents and communications

    - Administrative and all other communications regarding the GAL issue including Judge Ayers request for a summary and Husband's objection to excusing him from drafting the summary.

    - Transcripts and filings referenced in public proceedings

    - Email and text communications of Judges Kelly Ayers and Wendy DePaul and their judicial assistants related to this case including those related to scheduling and objections,

    - Visual and audio recordings of specified hearings

15. Despite statutory deadlines, consistent immediate action from Husband given the urgency of the situation, and persistent follow-up correspondence, Defendants failed to produce the requested records, provide a lawful justification, or even respond at all to several questions and additional correspondence.

16. Plaintiff received partial responses and purported justification for withholding relevant records from Gina Justice, Court Administrator, dated August 21, September 4, and September 8, 2025, acknowledging the existence of responsive records, but asserting exemptions and requiring payment for access.

17. These responses were inadequate and failed to address key concerns.

18. The September 8, 2025 response specifically denied access to the April 4, 2025 video recording on grounds of confidentiality under Fla. R. Admin. 2.420(c)(8) and §119.071(3)(a), F.S., despite the video being offered on the record by Judge Ayers during the hearing, raising concerns about inconsistent treatment and potential concealment.

19. Plaintiff has exhausted all informal remedies and administrative channels, including follow-ups on August 26, August 31, September 9, September 12, September 24, and October 9, 2025. Defendants never responded to any of the follow up requests for documents or explanations from September 9, 2025 forward besides an email from Moore acknowledging receipt and ensuring processing in a "reasonable" time).

20. Four weeks have passed since that last flimsy attempt at feigning compliance, constituting constructive denial and evidence of bad faith. Specific failures include:

    - No response to requests for affidavits describing search methods, including which devices were searched (e.g., personal devices under §119.011(12), F.S.) to confirm completeness.

    - No explanation for the lack of any communications regarding the hearings on December 13, 2024, and January 9, 2025, which raise concerns about irregular proceedings and potential concealment given the existence of emails surrounding less controversial

    - No clarification on how "security" video exists only for the April 4, 2025 hearing (Docket #198), whether the camera recording that footage is part of an actual security system, and why no similar footage exists for other relevant hearings or cases.

    - Refusal to provide any information by email, despite repeated requests, leading to inefficiencies such as Plaintiff's September emails and the Court's September 4, 2025 letter crossing in the mail. This reliance on U.S. Mail appears deliberate to delay access and violates the intent of Chapter 119 for prompt, efficient disclosure.

    - No written explanations with specific statutory citations for any withholdings even with the detailed questions posed.

21. Defendants' complete non-response to these specific concerns and requests, combined with the partial responses (raising significant concerns about strategic withholding/concealment of specific materials of relevance), provides further evidence of bias, bad faith, and a pattern where 13th Circuit "Clubhouse" members are circling the wagons to protect fellow members, in significant violation of Florida Public Records law.

22. This obstruction has caused ongoing harm to Plaintiff and his family. The October 9, 2025 email (Exhibit F, pp. 19–23) explicitly stated: "The ongoing and intentional concealment of evidence critical to my case… is causing ongoing and increasing damage to my children and my health. I do not believe there's any good faith basis to conceal the evidence identified nor even offer any clarification regarding the video evidence. I have real concerns about the veracity of some of the representations and the court's failure to even confirm devices searched." (EC pp. 19–23)

23. Defendants' failure to respond since their September 8, 2025 letter aside from the form response, demonstrates active concealment and bad faith, particularly in light

of the pre-suit notice under §119.12(1)(b), F.S., and the problem with fraud and dishonesty in the underlying case.

24. The Thirteenth Judicial Circuit is acting in bad faith, as evidenced by the deliberate pattern of delays, non-responses, and incomplete disclosures that seem to protect Judge Ayers in concealing extensive evidence that could cause her embarrassment and likely more significant discipline.

25. The singular issue in the underlying case (24-DR-001150) Husband's discovery efforts given Wife's concealment of marital assets at the time the parties entered a post marital agreement without counsel.

26. Judge Ayers actively assisted Wife and her attorney's obstruction strategies, suppressed evidence of obvious ethical misconduct from multiple attorneys, all to Husband's detriment, and actively sought to advance Wife's clearly retaliatory litigation (e.g., Exhibit G, pp. 24–82, detailing procedural irregularities, suppression of discovery, and failure to address ethical violations).

V. Legal Basis for Relief

27. Under Article I, §24 of the Florida Constitution and Chapter 119, public records are presumed open. (See also *Woodard v. State, 885 So. 2d 444* (Fla. 4th DCA 2004)).

28. The public records law is a critical tool that offers citizens a check on state corruption, and it's critical the Court system act efficiently in allowing this statutorily mandated tool to function as intended.

29. Defendants' failure to produce records and respond to clarifications violates §119.07 and entitles Plaintiff to mandamus relief. The asserted exemptions are invalid or overly broad under §119.07(1)(d), as no specific statutory basis was provided that fits with the facts and documents at issue. (*Town of Manalapan v. Rechler, 674 So. 2d 789* (Fla. 4th DCA 1996), finding unreasonable delay or non-response constitutes bad faith warranting fees).

30. The non-responses to specific inquiries (e.g., devices searched, explanations for lack of footage/communications) and refusal to use email demonstrate unreasonable and intentional delay, bad faith, and a pattern of inserting inefficiency in an attempt to advance concealment efforts.

31. The September 8, 2025 response's exemption claim for the April 4, 2025 video is a last ditch, feeble attempt to justify continuing concealment of evidence the Judge offered to provide, when she attempted to use the offer as a threat that might help restore her credibility. (EC pp. 17)

32. It was immediately after Husband insisted on the record that Ayers follow through with her threat when the concealment efforts started, and have now continued ever since. (EC pp. 19–20)

33. Additionally and alternatively, it seems the explanation on security footage. Defendants' failure to respond to the October 9, 2025 email, which asserted "ongoing and intentional concealment" and fee entitlement, further evidences active bad faith. (EC pp. 19–23)

34. Plaintiff is entitled to declaratory relief for himself and on behalf of his minor children under Chapter 86, Florida Statutes, to order production of the materials, clarify the legal duties of the Defendants, and/or otherwise mandate compliance. (See *Doe v. State, 217 So. 3d 1020* (Fla. 2017), affirming next friend authority in child-related suits).

35. Plaintiff is entitled to attorney's fees under §119.12, Florida Statutes, including enhanced awards for bad faith based on the pattern of delays, obstruction, non-responses to follow-ups, and evidence of bias/concealment.

VI. Certification/Declaration:

36. I, Christopher Hanson, declare under penalty of perjury that the following is true and correct to the best of my knowledge:

- I am acting as attorney and next friend for my minor children, whose interests are directly affected by the withheld records in the underlying litigation wrought with corruption and harmful delays and obstruction supported by the 13th Circuit.
- I submitted the public records requests attached as Exhibit A (Composite of First 5 Requests, pp. 2–11).
- I received the responses attached as Exhibit B (August 21, 2025 Letter from Gina Justice, pp. 12–14), Exhibit C (September 4, 2025 Letter from Gina Justice, p. 15), and Exhibit D (September 8, 2025 Response from Gina Justice on Video Availability, p. 16), and the September 15, 2025 acknowledge email.
- I reference the transcript excerpts attached as Exhibit E (April 4, 2025 Hearing Transcript – Pages 75 and 193, EC - pp. 17–18), which document the Court's acknowledgment of video footage and refusal to retrieve it.
- I submitted timely follow-up correspondence, including that included within the October 9, 2025 email chain to Mike Moore, attached as Exhibit F (Email Chain to Moore, pp. 19–23).
- I filed the motion to supplement the appellate record attached as Exhibit G

due to the video's critical evidence to the underlying case. (Motion to Supplement the Record with Video of 4/4/25 Hearing and Recusal Documents, pp. 24–82), which documents bias through procedural irregularities (e.g., pp. 24–25, 31–32 on video offer and non-production; pp. 26–30 on ethical violations ignored).

• Some of the records sought pertain to judicial scheduling, recusal, and procedural communications in Case No. 24-DR-1150.

• The responses confirm the existence of responsive records and the refusal to produce them without payment or under claimed exemptions.

• I have experienced retaliatory conduct following lawful public records requests, including unaddressed questions and concerns (that independently raise further concerns over bias and corruption in this proceeding).

•The partial responses (EC pp. 13-17) failed to address follow-ups on August 26, August 31, September 9, September 12, September 24, and October 9, 2025, including requests for affidavits on search methods/devices, explanations for lack of communications on December 13, 2024 and January 9, 2025 hearings, clarification on "security" video existence only for April 4, 2025, whether the camera is part of a security system, and why no footage exists for other cases. Defendants refused to use email, resulting in delays like emails and the September 4, 2025 letter crossing in the mail.

• Judicial officers have obstructed access to records and failed to comply with Chapter 119, as evidenced by the pattern of ignored ethical concerns detailed in Exhibits G and H (Correspondence to Chief Judge Sabella, pp. 83–169). This non-response pattern supports the bias, concealment, and "13th Circuit Clubhouse" culture where all the "members" have circled their wagons to protect insiders, violating public records law, despite the pain and damage it's causing this Hillsborough county family..

• The EC, (filed separately provides sold unrefuted evidence supporting these 13th Circuit's failures, refusals, and intentional actions in violation of Husband's due process rights.

Certified and executed on October 13, 2025.
/s/Christopher Hanson
Christopher Hanson
[redacted]
727-409-5738

VII. Prayer for Relief

WHEREFORE, Plaintiff respectfully requests that this Court:

A. Issue a writ of mandamus compelling Defendants to produce the following records immediately and without hearing, as time is of the essence:

- All email and text communications of Judges Kelly Ayers and Wendy DePaul and their judicial assistants regarding the undersigned's litigation in the 13th Circuit, including anything related to scheduling or attendance at hearings on December 13, 2024; January 9, 2025; and April 4, 2025
- All visual and audio recordings of hearings listed in Plaintiff's requests, including Docket #198 (April 4, 2025)
- All communications regarding the April 28, 2025 Order of Recusal
- All communications regarding the April 7, 2025 request for summary of Wife's testimony and Husband's motion to strike

B. Compel Defendants to provide affidavits describing search targets, methods, including which devices were searched (e.g., personal devices), to confirm completeness of production, what applications, emails, text programs searched to confirm compliance, and if applicable, justification for failing to search personal devices including text messages of Judge Ayers, her assistant, and other individuals involved in the events described above.

C. Compel Defendants to provide written explanations, with specific evidentiary and statutory citations, for:

- The lack of any communications regarding the hearings on December 13, 2024, and January 9, 2025.
- How "security" video exists only for the April 4, 2025 hearing.
- Whether the camera recording footage on April 4, 2025, is part of an actual security system.
- Why no footage exists for other relevant hearings or cases.
- Any withholdings or exemptions claimed in the partial responses.

D. Declare that Defendants violated Chapter 119 through unlawful refusal, non-response to clarifications and follow-ups, refusal to use email, failure to answer requests for clarification and access, provide explanations, and patterns of delay evidencing bias and

concealment;

E. Award attorney's fees and costs under §119.12, including enhancements for bad faith;

F. Grant such other relief as the Court deems just and proper.

Respectfully submitted,
/s/Christopher Hanson
Christopher Hanson, as attorney and next friend for his minor children
[redacted]
727-409-5738
[redacted]

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Verified Complaint for Writ of Mandamus, Declaratory Relief, and Attorney's Fees, along with all accompanying exhibits, was filed through the Florida Courts E-Filing Portal and service attempted via the Portal's e-service system on October 14, 2025, (with additional email service directly from plaintiff) to the following recipients:

Clerk of Court for the 13th Judicial Circuit at info@hillsclerk.com

13th Judicial Circuit Court at rowlanda@fljud13.org

Gina Justice, Court Administrator at gina.justice@fljud13.org

Mike Moore, Public Information Officer, mike.moore@fljud13.org

Judge Kelly Ayers at famlawdivd@fljud.org

Judge Christopher Sabella at cornelcm@fljud13.org.

/s/ Christopher Hanson
Christopher Hanson, Esq.
Florida Bar No. 44094
[redacted]